



HM Courts &  
Tribunals Service

# Your guide to Jury Service





# Contents

|                                  |    |
|----------------------------------|----|
| Introduction                     | 1  |
| The vital role jurors play       | 1  |
| Before you start                 | 2  |
| On the first day of jury service | 3  |
| What you can claim               | 8  |
| The Trial Process                | 9  |
| Support                          | 16 |
| Customer feedback                | 17 |

## Introduction

Each year, approximately 200,000 people perform jury service, a vital public duty. You have been selected for jury service because your name was randomly selected from the electoral register.

This booklet explains what you can expect and will help you prepare.

You do not need any legal training to serve as a juror. Everything will be explained to you and if there is something you do not understand, you can pass a note to the judge via an usher to ask for clarification.

There is more general information at [www.gov.uk/jury-service](http://www.gov.uk/jury-service).

If you still have questions, you can contact the Jury Central Summoning Bureau on 0300 456 1024 until a week before your jury service is due to begin. After that time, you should contact the Crown Court you have been asked to attend. The phone number will be shown on the Local Information leaflet sent to you with this booklet. Please give your name and juror number (found on the top of the Jury Summons) if you need to contact the bureau or the court.

## The vital role jurors play

Jurors decide the outcome of trials in the Crown Court. They hear the more serious criminal trials such as theft, burglary and drugs offences. Jurors may also be required to hear cases such as murder and rape, although these are less common.

Everyone has unique experiences to bring to a jury. The experiences and knowledge of those summoned will differ, yet each juror will be asked to consider the evidence presented and then decide whether or not the defendant is guilty in accordance with the judge's direction on the law.

When a jury reaches a verdict, it is not only making a decision that affects the individual defendant, it is also making a decision that affects the community.

It is for this reason that jury service is regarded as one of the most important civic duties that anyone can be asked to perform. Few decisions made by members of the public have such an impact upon society as a jury's verdict.

We are really grateful for your contribution.

## **Before you start**

If you have been summoned for jury service and had your summons confirmed, you are legally obliged to take part in the criminal justice process as a juror.

It is an offence for someone to impersonate a juror. Someone else cannot take your place. A summons is only for the person named on the summons and cannot be transferred to anyone else.

It is important that you inform your employer, child carer or anyone else who might be affected by your absence.

If you have moved out of the area before you start your jury service, contact the Jury Central Summoning Bureau as soon as you can who can transfer you to the court local to your new address. To advise them of your new address details, send an email to [jurysummoning@justice.gov.uk](mailto:jurysummoning@justice.gov.uk). If you need to speak to someone about a change of address, you can reach the Jury Central Summoning Bureau on 0300 456 1024.

Before and during your jury service, we will keep in touch with you by email if we have your email address. Please check your inbox and junk mail boxes regularly, particularly in the week leading up to your start date and once you begin.

## **Jurors with disabilities**

Reasonable adjustments are available to support people with disabilities. If you need specific information about the support available during your jury service, or you have not yet identified any requirements for reasonable adjustments in your communications with us, you should contact the jury manager at the court where you've been summoned. The phone number will be shown on the Local Information leaflet sent to you with this booklet.

## **On the first day of jury service**

### **Attendance**

It is important that you arrive on time. If you think you're going to be late or you're ill and can't go, you must contact the court before 9.30am that day.

You can be fined for not turning up for jury service.

You may be committing a criminal offence punishable by a fine of up to £1,000 if:

- you do not attend for jury service without reasonable cause
- when your name is called, you are not available to be a juror without reasonable cause
- when your name is called, you are not fit to serve because of drink or drugs

## Travel and parking

Where possible, you should use public transport to get to the courthouse.

The enclosed Local Information leaflet has information about travelling to court.

## Dress code

There is no strict dress code and you can wear clothes you're comfortable in, such as jeans and a t-shirt.

You **cannot** wear very casual clothing, such as beachwear or anything on your head, unless it is for religious reasons.

## **What you need to bring with you**

When you arrive at the court make sure you have your jury summons and/or your confirmation letter or email, plus another form of identification (ID).

Acceptable forms of ID are:

- full passport
- photo driving licence
- EU National Identity card; or
- Home Office documents confirming U.K. immigration status.

Alternatively, you can provide any two of the following:

- birth certificate (issued within six weeks of your birth);
- Credit or bank card with three statements;
- three utility bills showing your name and current address.

Court staff will ask you to show these to confirm your identity when you arrive at court on your first day.

## **Security**

When you arrive at the court, you'll need to go through security. You must go through security every time you enter the court building.

You may need to queue, so please allow extra time.

Tell the security staff that you are a juror, and you'll be told where to go.



There are rules on what items you can take in.

You cannot take guns, firearms, knives or other weapons into the building. You'll be reported to the police if you try to take a weapon into a court or tribunal building.

You also cannot take in items that security staff think could be used as a weapon, even if you think they're harmless.

These include things like:

- blades – such as scissors, penknives and razors
- other sharp items – such as knitting needles and darts
- glass – for example bottles
- metal cutlery
- syringes (unless you have a prescription)
- toy guns and other things that look like guns
- tools – for example screwdrivers, hammers and nails
- ropes and chains
- alcohol
- liquids that are not drinks or prescription medicine – such as oils, perfumes, lighter refills and cleaning products
- full-length umbrellas
- crash helmets

## Waiting time

Once everyone has arrived you will be shown a short film which will explain your role and responsibilities as a juror. It will also explain the trial process and the roles of the different people that you will see in court. If you want to watch it beforehand you can find it at [www.gov.uk/jury-service](http://www.gov.uk/jury-service)

After the film, you will be given details of the local facilities and the various forms you will need to fill in, for example to claim your expenses, and you will have an opportunity to ask any questions you may have.

There's likely to be time when you are waiting, so we advise you to bring a laptop, book, electronic device, magazine or paper to help pass the time. You can bring phones/tablets to court but you must not use the camera or recording functions within the court building.

The court will do all it can to ensure that you are not kept waiting long and will provide you with regular updates.

Not all jurors are chosen to be on a jury. We have to summon more jurors than we need to cover any last minute changes or unavailability of jurors. We'll release you as soon as we can if we don't need you. Sometimes you'll be asked to remain 'on call'. This means you should carry on your normal daily routine, including going to work if you can. If you're needed, we'll contact you, at the latest the day before. If you're asked to be 'on-call' it won't change your period of jury service. Your official start date remains the same.

## **Facilities**

Facilities vary court to court. Please see the Local Information leaflet that you were sent with this booklet for information about what is available at the court you have been summoned to.

There are no child-minding facilities at court.

## **What you can claim**

You do not get paid for doing jury service but you can claim some money back towards loss of earnings, childcare, travel, and food and drink costs.

Please refer to the Allowances leaflet sent with this booklet or visit [www.gov.uk/jury-service](http://www.gov.uk/jury-service).

You can also use this calculator to work out what you can claim for doing 10 days of jury service: [www.gov.uk/check-juror-claims](http://www.gov.uk/check-juror-claims).

## **If you are self employed**

If you are self-employed, documentary evidence of loss of earnings or additional expenses incurred must be supplied e.g.

- proof of being registered as self-employed;
- a copy of a previous tax return;
- a letter from an accountant stating average daily income;
- an authenticated letter from someone who would have offered work, quoting the amount they would have paid.

Ask at court for a claim form for self-employed jurors. If you believe that you will incur a loss, but do not have documentary evidence, you need to speak to the jury manager immediately as you may not be entitled to any loss of earnings.

## **Insurance policies**

There are various insurance policies that sometimes cover losses incurred while on jury service. This can include travel insurance policies if a holiday is impacted, and also business, home or personal insurance policies can include provisions covering loss caused by jury service. If you require any information about your jury service from the court for insurance purposes, please let the jury officer know.

## **The Trial Process**

### **Court times**

The court normally sits from 10.30am to 4.30pm each day. However, depending on how the trial progresses, the judge may ask you to sit longer or shorter hours on a daily basis. Your summons will tell you what time to arrive on your first day.

### **Choosing the jury**

You won't know which trial you will sit on until you are sworn in. Even when you are taken to a courtroom, you may not be selected for that case.

Trials can last a few days or a number of weeks. Most cases take less than a week, so you may be selected for more than one trial or released from service.

If a trial is likely to last longer than your expected 10 days, you will be asked if this will be difficult for you. You may be required to provide proof of the difficulty, but the ultimate decision whether you can be released from a longer case will be made by the trial judge.

At the start of the trial, a group of waiting jurors are called into court. From this group, the court will randomly select the jury panel by calling out 12 names to the court. If you are selected and recognise the defendant or anyone else involved in the trial, tell a court official at once by passing them a note.

If your name is called, you must either take an oath or affirmation. Both are equally important, and the court official will ask which method you want to use and will invite you to repeat after them the words of the oath or affirmation.

An example of the wording for each is below:

- The oath: I swear by Almighty God that I will faithfully try the defendant and give a true verdict according to the evidence.
- The affirmation: I do solemnly, sincerely and truly declare and affirm that I will faithfully try the defendant and give a true verdict according to the evidence.

Let a court official know if you require a different oath according to your religion. They should be able to provide you with the appropriate holy book and oath or will ask you to bring your own copy of the holy scripture. The oath can also be read out for you to repeat if you prefer.

Once sworn onto a jury, you must always sit in the same place in the jury box.

## **Challenge to a juror**

Prosecution or defence lawyers could 'challenge' you if they think you should not serve as a juror. They must give a good reason. If the judge accepts their reason, you won't be allowed to serve as a juror on that trial. But you could be called to serve on the jury in another case.

## **The case**

All criminal trials follow a similar pattern. One or more defendants will have been accused of a crime by the prosecution.

The trial will begin with the court clerk reading out the charges against the defendant.

You will hear evidence from the prosecution first, who will outline the details of the case, calling and questioning witnesses. When the prosecution has finished, the defence will follow a similar procedure.

A trial is a complicated legal process and there may be times when the judge and legal professionals need to discuss a point of law. The judge will ask the jury to leave the court for a short time. If this happens you will be led out of the courtroom to a waiting area outside. Once the matter has been resolved, the jury will be asked back to the courtroom.

When all the evidence has been given, the prosecution and the defence will make their closing speeches. They will talk directly to the jury as they argue their cases.

Finally, the judge sums up. The judge will go over the facts of the case and tell you, the jury, about the relevant law. The judge will also give you advice before you retire to the deliberation room to discuss the case and consider the verdict.

At the end of the summing up, the judge will ask the jury to appoint a foreperson. The foreperson will act as the spokesperson for the jury and will announce the verdict. The jury decide between them who should be the foreperson.

- If at any point you need further explanation, or you want to ask a question, you can pass a note to the judge via an usher.
- If you feel unwell, need to use the toilet, or are distressed by the evidence, please do not be afraid to tell someone – again, pass a note or simply raise your hand to get the usher's attention.
- If you have any concerns about what to do as a juror at any time or about the conduct of a fellow juror, please speak with an usher, a jury officer or send a note to the judge.

## **Note taking**

You will be provided with a pen and paper as you may find it useful to make notes. Any notes will remain in the courtroom and cannot be taken home.

You can take your notes to the deliberation room once deliberation begins.

At the end of the trial the notes will be securely destroyed.

## **Deliberation**

You will be advised in advance when the case is reaching the stage when the jury will enter the deliberation room to determine the case.

At the end of the trial, the judge will invite the jury to retire to the deliberation room.

Inside the deliberation room, jurors discuss the case by carefully considering the evidence presented in court, the argument of both sides and the directions of the judge. It is the jury's role to reach a decision on whether the defendant is guilty or not guilty of the charges made against them.

Once the jury is in deliberation, no outside communication is allowed, except through the court officials assigned to your jury which may be referred to as the Usher or Jury Bailiff. Jurors are therefore not allowed to leave the room (except for escorted comfort breaks) until a verdict is reached or the Judge releases the jury for the day. You'll be told how to contact the court official/s assigned to your jury should you need to.

The court will provide water, but it is best to bring food with you to court or to use on-site facilities before you enter the deliberation room to determine the case (and for any days after that, if it takes more than a day for the jury to reach a verdict).

You will be allowed to take any notes you have made as well as a copy of the indictment (this is the document that sets out the charge or charges faced by the defendant).

In some cases, you may also be allowed to take exhibits submitted during the trial into the deliberation room.

If the jury encounters any problems while they are discussing the case amongst themselves, they can contact the judge through the court official. The jury will then go back into the courtroom and the judge



will offer as much help as possible. Please note that no new evidence can be given at this stage.

If a verdict is not reached by the end of the day, the jury will be brought back into the courtroom and the judge will remind them that they should not talk to anyone about the case. They will then be formally released until the following morning.

- The judge will tell you that you **DO NOT** discuss the evidence with anyone outside of your jury either face to face, over the telephone or over the internet via social networking sites.
- If you do this, you risk disclosing information, which is confidential to the jury. Each juror owes a duty of confidentiality to the other jurors, to the parties and to the court. Jurors can only discuss the evidence when all 12 jurors are in the jury deliberating room at the conclusion of the evidence in the trial.
- It is a criminal offence punishable with a fine and/or imprisonment for a juror to disclose to any person any particular statements made, opinions expressed, arguments advanced or votes cast by members of the jury in the course of their deliberations.
- There are other strict rules that you must follow. You'll be given a copy of a notice setting out your legal responsibilities as a juror when you are selected to sit on a trial and take the oath. You can view a copy of the notice here [www.gov.uk/government/publications/notice-to-jurors](http://www.gov.uk/government/publications/notice-to-jurors).

## **Contempt of court**

It is for you and the other members of your jury alone to consider the evidence and reach a verdict. You must only discuss the case in the jury deliberation room when all the jurors are present.

It is an offence, punishable with a fine or imprisonment, for a juror to tell anyone about any statements, opinions, arguments or votes made by jury members while they are considering the case.

By order of the judge, no mobile phones, laptops, iPods or any devices with the capability of connecting to the internet can be taken into the deliberation room. Any juror in possession of one in the deliberation room can be found in contempt of court and can be fined or imprisoned. You'll be offered a locker or somewhere safe to store your valuables when you go into the deliberation room.

## **Reaching a verdict**

You will be allowed plenty of time to discuss the evidence amongst yourselves and to make a decision upon which you all agree.

In some cases, jurors do not all agree on the verdict. In these situations, the judge may accept a decision that most, but not all, of you are agreed. This is known as a majority verdict.

When you have reached a verdict, tell the usher or jury bailiff and you will be taken back to the courtroom. The court clerk will ask the foreperson for the verdict on each charge. The foreperson must take care to only answer the questions the court clerk asks.

When this has been done, your task is over, but stay in the jury box until the judge tells you to leave.

You will be informed if any further attendance is necessary or if you are no longer needed.

## **Sentencing**

The jury has no role in sentencing. The judge may sentence immediately on the day of the trial or at a later date. If you want to know the outcome of a case, you can contact the court the day after the sentencing date.

## **Support**

Most people find jury service interesting, satisfying and rewarding but some people can find it a daunting experience.

Please remember that you will not be on your own and if you have any difficulties or concerns you can talk to court staff. There will be someone on hand to assist you at every stage of the process.

If at any time during your jury service you are approached by anyone you think may be connected to the case you are hearing, you need to make immediate contact with court staff or the jury manager.

If you feel threatened or concerned at any stage as a juror then you need to make immediate contact with court staff. If you are not in the courthouse and you think you're in immediate danger you should dial 999.

Further information is available at court.

It is an offence for anyone to attempt to interfere with or intimidate a juror in any case before the Crown Court. If anyone approaches you about a case, you must tell a court official or police officer at once so that the matter can be reported to the trial judge.

## Customer feedback

We are always open to suggestions as to how we might improve the service we give to jurors. We'll send you a survey to complete when you finish, or if you prefer you can write to the court. If you think our staff deserve praise or a special mention, we'd love to hear from you.

We also want to know when our service falls short of what you expect. This is so we can put things right, make improvements and learn from the experience.

The quickest way to get a response is to speak to a member of court staff while you are in the building. They are best placed to listen to your feedback, resolve your complaint quickly and explain anything that is unclear.

Alternatively, you could contact the court by email, phone or letter. Or make a complaint using our online form.

If you would like more information about how to complain see the information and online form at: <https://www.gov.uk/government/organisations/hm-courts-and-tribunals-service/about/complaints-procedure>

## **If you are unhappy with judicial conduct**

To find out how to complain about a judge if you're not happy with the way they behaved towards you please visit [www.complaints.judicialconduct.gov.uk](http://www.complaints.judicialconduct.gov.uk). The Judicial Conduct Investigation Office do not accept complaints about a judge's decision or the way a judge has managed a case. They will only look at complaints about personal misconduct by the judiciary.



